Revision Date:
December 1, 2024

Background:
The income and needs of the Senior Parents (SP) are to be applied in all income eligibility determinations, including the applicant/recipient income tests, as well as budget computations.

Purpose:
The purpose of this section is to define the SP income requirements. This material revision is due to sunset review, and to update the examples with current Earned Income Disregard and Maximum Aid Payment (MAP) amounts. No policy or procedure changes have been made.

Policy

SP Income

In cases where a Minor Parent (MP) lives with their parent(s), the income and needs of the SP must be considered:

- The MP is to have their aid payment calculated using existing income and computation rules.
- The SP's income must be counted when determining the eligibility and aid payment for the MP's Assistance Unit (AU).

Ineligible MP

When the SP's income causes the MP's AU to be ineligible, the MP's case is denied/discontinued. All the MP's income is considered available to the MP's AU.

Example of Ineligible MP AU Due to Excess SP Income

- The persons residing together and receiving aid are the SP, a minor child, the MP and the MP's child. The SP earnings are $3,500.00, which is the family's only income. The family is nonexempt.
- The eligibility/grant computation is as follows:

$3,500.00	Gross Family Earned Income
- 600.00	$600 Income Disregard
$2,900.00	Nonexempt Earnings
- $1,450.00	50% Earned Income Disregard
$1,450.00	Total Net Nonexempt Income (round down)
$ 1,416.00	MAP for an AU of 4
- 1,450.00	Total Net Nonexempt Income
$ -0-	Grant (AU ineligible)

SP/MP Eligibility

When considering a SP's income results in the eligibility of the minor and the minor is either eligible to be included in their own AU or is eligible to be included in the SP's AU, the SP's income is considered, and the AU's grant amount is:

- The lesser of the potential grant amount of the MP's AU MAP.
- Plus any special needs for the MP's AU less any overpayment adjustment.

Example of Minor in Own AU (SP Excluded)

- The persons residing together are the SP, the MP and the MP's child. The SP is not in the AU. The SP earns $1,025.00. The MP has no income. The family is nonexempt.
- The eligibility/grant computation is as follows:

$1,025.00	Gross Family Earned Income
- 600.00	$600 Income Disregard
$ 425.00	Nonexempt Earnings
- 212.50	50% Earned Income Disregard
$ 212.00	Total Net Nonexempt Income (round down)
$1,175.00	MAP for an AU of 3
- 212.00	Total Net Nonexempt Income
$ 963.00	Potential Grant
$ 930.00	MAP for an AU of 2
$ 930.00	Actual Grant Amount (lesser of potential grant or AU MAP)

Example of MP in SP(s) AU

- MP lives with both parents. The SPs choose to be in the AU with the MP and the minor's child. One SP earns $900/month from full-time employment. The other SP earns $400/month from part-time employment and $125 in State Disability Insurance benefits. The MP has no income. The AU is nonexempt.
- The eligibility/grant computation is as follows:

$ 125.00	Disability-Based Income
- 600.00	$600 Income Disregard
($ 475.00)	Net Nonexempt Disability-Based Income
$1,300.00	Gross Family Earnings
- 475.00	Remainder of Disregard ($600 - $125)
$ 825.00	Nonexempt Earned Income
- 412.50	50% Earned Income Disregard
$ 412.00	Net Nonexempt Income (round down)
$ 412.00	Total Net Nonexempt Income
$1,416.00	MAP for an AU of 4
- 412.00	Net Nonexempt Income
$1,004.00	Grant Amount

Procedure:
None.

Program Impacts:
None.

References:
Eligibility and Assistance Standards (EAS) 89-201.5.

Sunset Date:
This policy will be reviewed for continuance by December 31, 2027.

Approval for Release:

12-2-24

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